

		As for the Motion itself, Plaintiff email served the individual defendants at their personal email addresses and email served the corporate entities at their former defense counsel's office. Emailing the defendants is improper as none of them have consented to receive email service, and notice to former counsel is improper as to the corporate entities as they are no longer represented by former defense counsel. Regarding the requested late fees of \$480,000, the Agreement requires Plaintiff to send a written notice of payment default to Defendants if Plaintiff does not receive any specific installment payments. (Simon Decl., Ex. A § 2.) Defendants then have the opportunity to cure each default and avoid late penalties if they pay within the two day cure period. Here, Plaintiff did not provide any evidence of proper notice to Defendants of the defaults and the cure payment periods given the demand was served on former defense counsel and not on unrepresented Defendants themselves. As such, it does not appear the \$480,000 can be added onto the judgment at this time due to lack of notice and lack of the ability to cure. As Plaintiff has not produced evidence it has complied with the requirements of the Agreement and service of the Motion, the Motion is denied without prejudice. Plaintiff to give notice.
2	Morales v. General Motors LLC	The motion for attorneys' fees, costs and expenses filed by plaintiff Dennis Morales (Plaintiff) is GRANTED IN PART. Plaintiff is awarded attorney fees, costs and expenses against defendant General Motors, LLC (Defendant) in the total amount of \$26,905.46, comprised of \$24,487.50 in fees plus \$2,417.96 in costs and expenses. A court assessing a claim for fees under Civil Code section 1794, subdivision (d) is to use the lodestar as the start, to assess the reasonableness of the fee claim. (<i>Mikhaeilpoor v. BMW of North America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (Ibid; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation

to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

The Court finds counsels' hourly rates adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Danna Decl., ¶¶ 30, 32-33 and Ex. J-R; see also, *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested.

The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is denied.

The Court has reviewed the billing records submitted by Plaintiff's counsel and determines, with the exceptions noted below, the fees claimed are generally reasonable in light of the circumstances of this case. In the Reply, Plaintiff withdrew his request for \$1,030 for anticipated time to oppose Defendant's motion to tax costs, as no motion to tax costs was filed. Thus, \$1,030.00 shall be deducted from the fee award.

In the Opposition, Defendant argues the billing records show duplicative and unreasonable billing entries which should be stricken or reduced. In terms of duplicative billing, Defendant lists five examples, none of which clearly show duplicative billing. Rather, these entries appear to show either different tasks or continuation of the same task on different days. Plaintiff confirms as much in the Reply.

In terms of unreasonable billing entries, Defendant is correct that the flat fee entry for \$3,900 for "all services rendered prior to the preparation of the Complaint" appears excessive. (See Ex. A, 7/24/25 entry.) As there is no breakdown of the specific hours spent on these tasks, the Court is unable to determine if the entirety of time spent on this entry is reasonable. The Court will allow \$1,800 for this entry. This results in a reduction of \$2,100.

The Court agrees with Defendant that 6 hours to review the opposition, prepare a reply and attend the hearing on this motion is excessive. The Court will allow 4 hours for these tasks at the \$515 hourly rate, which results in a reduction of \$1,030.

Defendant has not shown any other entries should be reduced as excessive or unreasonable.

Based on the foregoing, Plaintiff is awarded attorney's fees in the reduced sum of \$24,487.50.

Plaintiff's unchallenged request for costs and expenses in the amount of \$2,417.96 is **GRANTED**.

Counsel for Plaintiff is ordered to give notice of this ruling.